

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isaac Forman	Team: Squad #15	CCRB Case #: 201605124	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 04/25/2016 5:20 PM	Location of Incident: Crescent Street and Sutter Avenue	18 Mo. SOL 10/25/2017	Precinct: 75		
Date/Time CV Reported Tue, 06/14/2016 2:08 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/14/2016 2:08 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kevin Morgan	07698	949365	075 PCT
2. POM Ryan Olsen	11530	949417	075 PCT
3. POM Anthony Smith	19691	959254	075 PCT
4. An officer			075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jonathan Ortega	01852	961043	PATU

Officer(s)	Allegation	Investigator Recommendation
A . POM Kevin Morgan	Abuse: Police Officer Kevin Morgan stopped the vehicle in which § 87(2)(b) was an occupant.	A . Substantiated
B . POM Kevin Morgan	Abuse: Police Officer Kevin Morgan frisked § 87(2)(b)	B . Substantiated
C . POM Kevin Morgan	Abuse: Police Officer Kevin Morgan searched § 87(2)(b)	C . Unsubstantiated
D . POM Kevin Morgan	Discourtesy: Police Officer Kevin Morgan spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POM Kevin Morgan	Abuse: Police Officer Kevin Morgan searched the vehicle in which § 87(2)(b) was an occupant.	E . Exonerated
F . POM Ryan Olsen	Abuse: Police Officer Ryan Olsen searched the vehicle in which § 87(2)(b) was an occupant.	F . Substantiated
G . POM Anthony Smith	Abuse: Police Officer Anthony Smith searched the vehicle in which § 87(2)(b) was an occupant.	G . Unsubstantiated
H . An officer	Abuse: An officer searched the vehicle in which § 87(2)(b) was an occupant.	H . Officer(s) Unidentified

Case Summary

§ 87(2)(b) filed this complaint with the CCRB on the telephone on June 14, 2016.

On April 25, 2016, at approximately 5:20pm, § 87(2)(b) was pulled over by PO Kevin Morgan, PO Ryan Olsen, PO Anthony Smith, and PO Johnathan Ortega—who was a police recruit at the time of the incident—of the 75th Precinct (**Allegation A**). § 87(2)(b) opened the door to obtain his registration from the trunk of his vehicle. When the door opened, PO Morgan observed a small quantity of marijuana and instructed § 87(2)(b) to get out of the vehicle. PO Morgan then frisked and allegedly searched § 87(2)(b) (**Allegations B and C**). While frisking § 87(2)(b) PO Morgan allegedly said that he would search § 87(2)(b)'s “nuts” (**Allegation D**).

PO Morgan then searched the driver's area of the vehicle (**Allegation E**). After the search, PO Morgan led § 87(2)(b) to the rear of the vehicle and remained with him. PO Olsen then searched the passenger side of § 87(2)(b)'s vehicle (**Allegation F**). During this time, PO Smith was allegedly searching the driver's side of § 87(2)(b)'s vehicle (**Allegation G**). Later, an unidentified officer allegedly searched the trunk of § 87(2)(b)'s vehicle (**Allegation H**). During the vehicle search, an open bottle of alcohol was recovered from the rear seat of § 87(2)(b)'s vehicle. § 87(2)(b) was issued a criminal court summons for § 87(2)(b).

Video footage was not located for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation during his sworn statement § 87(2)(b)
- A FOIL request was filed on June 24, 2016 and August 30, 2016, the results of which indicate that no notices of claim were filed in regards to this incident (BR 07).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (BR 08).
- During his six year tenure, PO Morgan has been the subject of nine previous CCRB allegations involving six cases resulting in no substantiated allegations. § 87(2)(g)
- During his six year tenure, PO Olsen has been the subject of three prior CCRB allegations involving two cases resulting in no substantiated allegations. § 87(2)(g)
- This is PO Smith's first CCRB complaint during his one year tenure.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

Allegation A –Abuse of Authority: Police Officer Kevin Morgan stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Morgan initiated a car stop of § 87(2)(b)'s vehicle near the intersection of Crescent Street and Sutter Avenue in Brooklyn. § 87(2)(g).

§ 87(2)(b) stated that while driving from a car wash to his home, he was stopped immediately after pulling through the intersection of Crescent Street and Sutter Avenue. When § 87(2)(b) asked PO Morgan why he had been stopped, PO Morgan stated that his rear brake light was out. In his testimony, § 87(2)(b) stated that this could not have been true because his vehicle, a 2009 Model 520 BMW sedan, gives alerts when the brake lights are out. § 87(2)(b) did not mention this to the officers at the time of the incident. § 87(2)(b) testified that his vehicle's windows are illegally tinted. The officers did not mention this to § 87(2)(b) (BR 01).

PO Morgan testified that he was driving behind § 87(2)(b)'s vehicle for two or three blocks. There was a car in between them. When that car turned off, PO Morgan initiated his lights to pull over § 87(2)(b). PO Morgan could not recall what the reason was that led him to stop § 87(2)(b). He could not recall whether it was an equipment violation or a traffic violation. PO Morgan stated that he could not recall whether there was any discussion within the car regarding the reason for the stop. PO Morgan testified that he believed it was his decision to stop § 87(2)(b) (BR 02).

PO Olsen and PO Smith both testified that they could not recall the reason that they stopped § 87(2)(b). PO Olsen could not recall whether the stop was the result of a traffic violation or an equipment violation (BR 03, BR 05).

The date of the incident was PO Ortega's first day as a police recruit in the field observing senior officers. PO Ortega's testimony was scattered and marred by his memory of this stop being mixed with another stop that day. However, PO Ortega did recall that one of the stops that day was the result of a brake light being out (BR 04).

A vehicle stop is valid if there is probable cause that the driver committed a traffic violation regardless of the officer's underlying motivation to conduct another investigation. People v. Weishaupt, 118 A.D.3d 1100(2014) (BR 10).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B –Abuse of Authority: Police Officer Kevin Morgan frisked § 87(2)(b)

It is undisputed that PO Morgan frisked § 87(2)(b) after he got out of his vehicle. § 87(2)(g)

§ 87(2)(b) testified that after getting out of the vehicle, PO Morgan stated that he was going to frisk § 87(2)(b). § 87(2)(b) stated that the frisk covered his whole body including his groin area (BR 01).

PO Morgan testified that after § 87(2)(b) got out of the vehicle, he frisked § 87(2)(b). He patted down § 87(2)(b)'s waist area and front pants pockets. PO Morgan testified that he was checking for weapons for the safety of his partner and himself. PO Morgan stated that § 87(2)(b) did not have any bulges on his person and that he did not suspect § 87(2)(b) of possessing a weapon (BR 02).

PO Olsen and PO Smith testified that they did not see PO Morgan frisk § 87(2)(b). PO Ortega testified that he could not recall whether PO Morgan frisked § 87(2)(b). Both PO Olsen and PO Ortega stated that they did not suspect § 87(2)(b) of possessing a weapon (BR 03, BR 05, BR 04).

A frisk requires reasonable suspicion that an individual is in possession of a weapon. People v. DeBour, 40 N.Y.2d 210 (1976) (BR 09).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **substantiated**.

Allegation C –Abuse of Authority: Police Officer Kevin Morgan searched § 87(2)(b)

§ 87(2)(b) alleged that after frisking him, PO Morgan searched his two front pants pockets. § 87(2)(b)

§ 87(2)(b) testified that there was nothing in his pockets at the time (BR 01).

PO Morgan testified that he did not enter § 87(2)(b)'s pockets with his hands (BR 02).

PO Olsen and PO Smith testified that they did not see PO Morgan search § 87(2)(b) (BR 03, BR 05).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D –Discourtesy: Police Officer Kevin Morgan spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that while he was being patted down by PO Morgan, PO Morgan stated that he was going to search § 87(2)(b)'s "nuts, because that is where people hide stuff" (BR 01).

PO Morgan stated that he did not say this, nor did he pat down or search § 87(2)(b)'s genital area. PO Morgan also did not hear PO Olsen say this. PO Olsen, PO Smith, and PO Ortega all testified that they did not make that statement (BR 02, BR 03, BR 04, BR 05).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E –Abuse of Authority: Police Officer Kevin Morgan searched the vehicle in which § 87(2)(b) **was an occupant.**

It is undisputed that after removing § 87(2)(b) from the vehicle, PO Morgan conducted a search of the driver's area of the vehicle.

PO Morgan testified that as § 87(2)(b) opened the driver's door to retrieve his registration PO Morgan observed what he believed to be marijuana. PO Morgan observed the item he believed to contain marijuana in the handle area of the door. He described the item as a small quantity of a green, leafy substance contained in a small zip lock container. PO Morgan testified that there was no discernable smell. He stated that he knew it was marijuana based on the observations above and his prior experience of recovering and field testing marijuana. PO Morgan stated there was nothing else in the area of the item (BR 02).

§ 87(2)(b) testified that he did have marijuana in the driver's door. However, § 87(2)(b) stated it was located in the lower pocket of the door under a cigar wrapper and a bottle of cologne. § 87(2)(b) also stated that he did not believe it was visible at the time of the incident. § 87(2)(b) testified that he had just come from getting his car washed and there was no smell of marijuana in the vehicle. While the search was going on, § 87(2)(b) asked PO Morgan why they were searching his vehicle, to which PO Morgan stated that they could because there was marijuana in the vehicle (BR 01).

An officer may search a vehicle only if there is probable cause that it contains contraband, weapon, or evidence of a crime. People v. Hernandez, 238 A.D.2d 131 (1997) (BR 11).

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **exonerated**.

Allegation F –Abuse of Authority: Police Officer Ryan Olsen searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Olsen searched § 87(2)(b)'s vehicle, § 87(2)(g)

§ 87(2)(b) testified that as he was going into his trunk to retrieve his registration, PO Olsen had begun searching the passenger side of the vehicle (BR 01).

PO Morgan testified that as he was positioned behind § 87(2)(b)'s vehicle with § 87(2)(b) PO Olsen conducted a search of the front passenger area and the rear of the vehicle (BR 02).

PO Olsen testified that as he approached § 87(2)(b)'s vehicle he observed scattered marijuana on the front passenger's floorboard and smelled unsmoked marijuana. PO Olsen stated that he did not communicate his observations with any other officer. In his interview, PO Olsen stated marijuana is "not a big deal" (BR 03).

PO Olsen stated that he observed § 87(2)(b) open his door, fumble in the door for a minute, and then stand up out of the vehicle at PO Morgan's request. PO Olsen stated he was not aware of why PO Morgan instructed § 87(2)(b) to get out of the vehicle. PO Olsen later learned that PO Morgan had observed marijuana in the driver's door, however he did not know this at the time. PO Olsen stated he did not observe anything he believed to be marijuana in the driver's door.

After § 87(2)(b) was out of the vehicle, PO Olsen opened the front passenger door and leaned in with his upper body to search the area. He then searched the rear passenger area. It was here that he observed the open container of alcohol.

PO Olsen denied that PO Morgan had instructed him to conduct the search of the vehicle. Further, he stated that there was no communication between PO Morgan and himself. In the interview, PO Olsen stated he knew to begin searching the vehicle because, "if Officer Morgan pulled him out the car, there had to be a reason."

An officer may search a vehicle only if there is probable cause that it contains contraband, weapon, or evidence of a crime. People v. Hernandez, 238 A.D.2d 131 (1997) (BR 11).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **substantiated**.

Allegation G –Abuse of Authority: Police Officer Anthony Smith searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that as he was entering his trunk to retrieve his registration, PO Smith was searching the driver's side of the vehicle.

PO Smith denied that he searched § 87(2)(b)'s vehicle. He also testified that he did not observe any other officers search the vehicle (BR 05).

Neither PO Olsen nor PO Morgan could recall that PO Smith had been at the incident at all. PO Olsen allowed that there could have been a third officer there, however he could not recall if that was in fact the case (BR 02, BR 03).

PO Ortega recalled PO Smith being present at the incident. He stated that he did not recall seeing PO Smith enter the vehicle (BR 04).

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

Allegation H –Abuse of Authority: An officer searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that after being placed back in the vehicle, an officer searched the trunk of his vehicle. § 87(2)(b) stated that while he was sitting in the driver's seat of his vehicle, PO Morgan and PO Smith were located in the rear of his vehicle. The trunk door was up, and thus obstructed § 87(2)(b)'s view through his rear windshield. § 87(2)(b) could see movement in the crack between the trunk door and the rear hood, though he could not tell who was making the movements (BR 01).

PO Morgan stated that neither PO Olsen nor he searched the trunk of § 87(2)(b)'s vehicle. PO Olsen testified that he did not open the trunk and did not observe any other officer do so. Both PO

Smith and PO Ortega testified that they did not recall the trunk being open (BR 02, BR 03, BR 04, BR 05).

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **officer unidentified**.

Squad: 15

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date